

Subhash v. Paschimanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 28 November 2019 · Writ-C No. 38968 of 2019 · **Writ disposed; Executive Engineer to hear objections and pass a speaking final order; coercive recovery stayed for seven weeks; further grievance relegated to s.127.**

HEADNOTE

A Tehsildar recovery citation for an electricity bill, challenged as issued without hearing and without following the U.P. Electricity Supply Code, 2005, was not quashed on merits. The Division Bench directed the consumer to appear before the Executive Engineer with objections and evidence, required a speaking final order within four weeks, stayed coercive action for seven weeks or until that disposal, and left any grievance against the final order to an appeal under Section 127 of the Electricity Act, 2003.

FACTUAL SUMMARY

Subhash challenged a Tehsildar, Moradabad recovery citation dated 20 August 2019 demanding Rs.11,39,107 towards an electricity bill from Paschimanchal Vidyut Vitran Nigam Limited. He sought certiorari to quash the citation and mandamus restraining coercive recovery until the demand was reassessed after enquiry. He alleged that coercive steps were being taken without opportunity of hearing and without following the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation to s.127 after speaking final order

HOLDING

Without deciding whether a Tehsildar recovery citation for an electricity demand was issued without hearing or in breach of the U.P. Electricity Supply Code, 2005, the Court disposed of the writ by directing the consumer to appear before the Executive Engineer with objections and evidence, requiring a speaking and reasoned final order within four weeks, staying coercive action for seven weeks or until disposal of the objection (whichever earlier), and holding that any grievance against that final order would lie in an appeal under Section 127 of the Electricity Act, 2003. Default in appearance or in filing the objection would revive the citation and vacate the stay. ¶ 1

PRINCIPLE TAGS

final-assessment-order-relegates-assessee-to-section-127-appeal

A Tehsildar recovery citation for an electricity bill, challenged as issued without hearing and without following the U.P. Electricity Supply Code, 2005, was not quashed on merits.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CITATION OF RS.11,39,107 WAS ISSUED WITHOUT OPPORTUNITY OF HEARING OR IN BREACH OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

The Court took a lenient view and remitted objections to the Executive Engineer without deciding the alleged Code violation or the demand on merits. ¶ 1